



Tulsa Metropolitan Area Planning Commission

Minutes of Meeting No. 2948

Wednesday, November 5, 2025, 1:00 p.m.

Tulsa City Council Chambers, 175 E. 2nd St., Tulsa, OK 74103

The notice and agenda of said meeting were posted in the City Clerk's and the County Clerk's office on October 29, 2025, at 4:03 p.m.

Members Present: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Members Absent: Walker

City Staff Present: Austin Chapman, Nathan Foster, Erin Roark, Kim Sawyer, Jeff Stephens

County Staff Present: Kendal Davis

Speaker Key:

- (+) indicates a speaker generally supportive of an item;
- (-) indicates a speaker generally opposed to an item; and
- (=) indicates a speaker generally neutral or who has questions about an item.

After declaring a quorum present, Chair Krug called the meeting to order at 1:00 p.m.

Reports

Chairman's Report: None

Director's Report: None

Approval of Minutes

1. Minutes from Meeting 2947, October 15, 2025

Motion: Approval of the minutes of Meeting 2947 from October 15, 2025.

Motion by: Craddock **Second by:** Shivel

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Item 3 was removed from the Consent Agenda and placed on the Public Hearing by Commissioner Krug.

Consent Agenda

2. PUD-185-3

Location: 3007 South Rockford Road

City Council District: 4

Applicant: Nathalie Cornett, Eller and Detrich, P.C.

Action Requested

PUD minor amendment to adjust building setbacks in Development Area B.

Staff Recommendation

The applicant is proposing a minor amendment to PUD-185 to adjust the building setbacks within Development Area B of the PUD.

The original development plan was adopted under the previous City of Tulsa Zoning Code and imposed a 25-foot building setback from the east, north and west boundary of the PUD in addition to the RS-1 standards at the time which required a 10/5-foot side yard.

Proposed amendment to the setbacks:
Development Area B

Building Setbacks for Subject Property

West (Side) Property Boundary: 5 FT

North (Rear) Property Boundary: 10 FT*

* The existing structure, as shown on the Site Plan attached, shall be permitted to remain at its current location, set back 2FT from the North Property boundary. All other structures must comply with the 10-foot setback from the North Property boundary.

The minor amendment updates the setbacks allowed on Lot 10 of the PUD to align with current RS-1 standards with a reduction in the North setback to conform to existing conditions.

Staff has reviewed the request and determined:

- 1) PUD-185-3 is consistent with the provisions for administration and procedures of a PUD in section 30.010-H.
- 2) PUD-185-3 does not represent a significant departure from the approved development standards in the PUD and is considered a minor amendment to PUD-185.
- 3) All remaining development standards defined in PUD-185 and subsequent amendments shall remain in effect.

With consideration given to the factors listed herein, staff recommends **approval** of the application.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as neighborhoods. **Neighborhoods** are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RE	Neighborhood	Residential
East	RS-1/PUD-185	Neighborhood	Residential
South	RM-1/PUD-185	Neighborhood	Residential
West	RM-1/PUD-511	Neighborhood	Residential

Small Area Plans

The subject property is not located in small area plan.

Development Era

The subject property is in an area developed during the Early Automobile Era (1930s-50s), which retained a high degree of connectivity from neighborhood streets to the arterial network, with mostly commercial, office, industrial, and other active uses along major streets and a mix of housing options and neighborhood-based uses like schools, churches, and libraries in the interior sections. Priorities in these areas include walkability, bikeability, access to public transit, historic preservation, housing type variety, mixed-use development, commercial revitalization, compatibility of scale for neighborhood development, and transitions between commercial corridors and residential areas.

Transportation

Major Street & Highway Plan: N/A.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: Sidewalks are planned along all public streets in the City of Tulsa.

Environmental Considerations

Flood Area: The subject property is not located within a designated flood area.

Tree Canopy Coverage: Tree canopy in the area is 35%. Significant effort should be given to the preservation of mature stands of trees. Tree canopy removal should be minimized, and replacement of trees that need removing should be encouraged.

Parks & Open Space: N/A

Property Description

Part of Lots Nine (9) and Ten (10), Block One (1), GLADEBROOK SECOND, an Addition to the City and County of Tulsa, State of Oklahoma, according to the recorded Plat No. 4171, being more particularly described as follows, to-wit: Beginning at the Northwest corner of said Lot 10; thence due East along the North line thereof, a distance of 174.00 feet to the Northeast corner of said Lot 10; thence South 21°21'10" West along the Easterly line thereof, a distance of 136.11 feet to the

most Easterly Southeast corner of said Lot 10; thence North 75°40'38" West along a common boundary line of said Lots 9 and 10 and extension thereof, a distance of 102.63 feet to a point; thence due West a distance of 15.00 feet to a point lying 10.00 feet East of the West line of said Lot 10; thence due South a distance of 158.62 feet to a point; thence due East a distance of 15.00 feet to a point; thence due South a distance of 10.00 feet to a point on the most Southerly line of said Lot 10; thence due West along said most Southerly line, a distance of 25.00 feet to the Southwest corner of Lot 10; thence due North along the West line thereof, a distance of 270.00 feet to the Point of Beginning.

AND

Part of Lot Nine (9), Block (1), GLADEBROOK SECOND, an Addition to the City and County of Tulsa, State of Oklahoma, according to the recorded Plat No. 4171, being more particularly described as follows, to-wit:

Beginning at the Northeast corner of said Lot 9; thence North 75°40'38" West a distance of 102.63 feet; thence South parallel to and 27.00 feet East of the West boundary of said Lot 10, a distance of 1.00 feet; thence South 75°40'38" East a distance of 22.00 feet; thence North 14°19'22" East a distance of 0.97 feet; thence South 75°40'38" East a distance of 24.00 feet; thence South 14°19'22" West a distance of 1.60 feet; thence South 75°40'38" East a distance of 6.00 feet; thence North 14°19'22" East a distance of 1.60 feet; thence South 75°40'38" East a distance of 23.00 feet; thence South 14°19'22" West a distance of 0.50 feet; thence South 75°40'38" East a distance of 9.00 feet; thence North 14°19'22" East a distance of 0.50 feet; thence South 75°40'38" East a distance of 18.38 feet to the Point of Beginning.

Commission Action

Motion: Approve Consent agenda item 2 per staff's recommendation.

Motion by: Hood Second by: Rosene Robinson

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Public Hearing – Rezoning

Review and possible recommendation of approval, approval with modifications, denial, or deferral of the following:

Item 3 was moved from Consent Agenda to the Public Hearing and then continued to November 19, 2025.

3. **PUD-457-7**

Location: 7908 South Fulton Avenue

City Council District: 8

Applicant: Mark Nelson

Action Requested

PUD minor amendment to reduce the side and rear setbacks

Staff Recommendation

The applicant is proposing a minor amendment to reduce the required setback from the side and rear property line for an accessory structure. The base zoning of RS-3 would permit the structure setback 3 feet from the property line, but the Planned Unit Development restricts accessory buildings to 10-feet from the property lines. A portion of the structure is proposed inside a City of Tulsa Utility easement, a separate encroachment agreement has been submitted to the City of Tulsa to permit the structure at that location.

Proposed setbacks for detached accessory structure:

Side Setback (North property line) 7 feet

Rear Setback (East property line) 8 feet

With consideration given to the factors listed herein, staff recommends approval of the application per the attached conceptual site plan.

Staff has reviewed the request and determined:

- 1) PUD-457-7 is consistent with the provisions for administration and procedures of a PUD in section 30.010-H.
- 2) PUD-457-7 does not represent a significant departure from the approved development standards in the PUD and is considered a minor amendment to PUD-457.
- 3) All remaining development standards defined in PUD-457-7 and subsequent amendments shall remain in effect.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as Neighborhood. **Neighborhoods** are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-3/PUD-457	Neighborhood	Detached Single-family House
East	RS-3/PUD-457	Neighborhood	Detached Single-family House
South	RS-3/PUD-457	Neighborhood	Detached Single-family House
West	RS-3/PUD-457	Neighborhood	Detached Single-family House

Small Area Plans

The subject property is not located within any adopted small area plans.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

Transportation

Major Street & Highway Plan: N/A

Comprehensive Plan Street Designation: N/A

Transit: Regular route along East 81st Street South.

Existing Bike/Ped Facilities: None.

Planned Bike/Ped Facilities: None.

Staff Comments

Staff stated they would prefer that this item is reviewed by City staff in franchise utilities before approving this application. He stated if Planning Commission would prefer to hear it today he would like to make abundantly clear to the applicant that approval of the minor amendment is not an endorsement of the City approving any type of encroachment agreement into that utility easement. Otherwise this would need to be continued to November 19, 2025 meeting to allow time for review by appropriate staff.

Applicant Comments

Mark Nelson, 3132 South Utica Ave., Tulsa, OK 74105, stated he would like the item to be heard today. We are very aware there are kind of two things we're doing right now. He stated that Development Services is aware of the easement issue and they have a separate application in process for that.

Property Description

LOT 8, BLOCK 2, HOLLAND LAKES, CITY OF TULSA, TULSA COUNTY, STATE OF OKLAHOMA

Commission Action

Motion: To continue item 3 to November 19, 2025.

Motion by: Craddock Second by: Bulmash

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

DRAFT

4. PUD-286-B (Continued from October 15, 2025)

Location: West of the southwest corner of East 47th Place South and South Mingo Road

City Council District: 7

Applicant: John W. Moody

Action Requested

PUD Major Amendment to add uses permitted in the IL and OM districts

Staff Recommendation

The applicant is proposing a major amendment to PUD-286-B to add low-impact manufacturing and industry uses and lower intensity uses within the PUD. Case was originally on the 10/15/2025 hearing, but was continued because the applicant was not able to be present.

PUD-286 was adopted in 1982 and consisted of approximately 2.53 acres and limited uses to those included in Use Unit 15, Other Trades and Businesses. A major amendment, PUD-286-A, was adopted in 1983 to permit a portion of the property to be used as a restaurant and maintain the other standards in the PUD.

Industrial uses designated as Low-impact require all activities to take place within enclosed buildings. Off-site impacts such as noise, odors, and dust are prohibited in association with this use.

The property is designated as Employment in the Comprehensive Plan, and the additional uses would be consistent with the surrounding properties and the anticipated development of the subject property.

With consideration given to the factors listed herein, staff recommends **approval** of the application subject to the development standards outlined herein.

PUD-286-B Development Standards

Development within PUD-286-B shall conform to the City of Tulsa Zoning Code adopted November 5, 2015 and as subsequently amended except as modified herein.

Permitted Use Categories, Subcategories, and Specific Uses:

PUD-286-B shall allow only the uses identified below, along with the customary accessory uses, and subject to the supplemental regulations of the Tulsa Zoning Code. Uses identified below are permitted by right.

Uses that cannot be reasonably interpreted to fall within a permitted use, as stated in Section 35.020-E of the Tulsa Zoning Code are prohibited.

RESIDENTIAL

Household Living Subcategory (if in allowed building types identified below):

Single Household

Mixed-Use building

Vertical mixed-use building

Two households on a single lot

Duplex

Mixed-Use building

Vertical mixed-use building

Three or more households on a single lot

Multi-unit House

Apartment/condo

- Mixed-Use building
- Vertical mixed-use building
- Group Living
 - Assisted Living Facility
 - Community Group Home
 - Elderly/retirement center
 - Life Care retirement center
- Rooming/ Boarding house

PUBLIC, CIVIC, AND INSTITUTIONAL Use Category

- Day Care
 - Child Care Center
- Safety Service
- Natural Resource Preservation
- Postal Services
- Religious Assembly
- School
- Utilities and Public Service Facility
 - Minor
- Wireless Communication Facility
 - Freestanding tower
 - Building or tower-mounted antenna

COMMERCIAL Use Category

- Animal Service
 - Boarding or shelter
 - Grooming
 - Veterinary
- Broadcast or Recording Studio
- Commercial Service
 - Building service
 - Building support service
 - Consumer maintenance/repair service
 - Personal improvement service
 - Research service
- Financial Services (including all specific uses)
- Funeral or Mortuary Service
- Lodging
 - Short-term rental
- Office
 - Business or professional office
 - Medical, dental or health practitioner office
 - Plasma center
- Parking, Non-accessory
- Restaurants and Bars
 - Restaurant
- Retail Sales
 - Building supplies and equipment
 - Consumer shopping goods
 - Convenience goods

- Grocery Store
- Self-service Storage Facility
- Studio, Artist or Instructional Service
- Trade School
- Vehicle Sales and Service
 - Commercial vehicle repair/maintenance
 - Commercial vehicle sales and rentals
 - Fueling station
 - Personal vehicle repair and maintenance
 - Personal vehicle sales and rentals
 - Vehicle part and supply sales
 - Vehicle body and paint finishing shop
- WHOLESALE, DISTRIBUTION & STORAGE Use Category
 - Equipment & Materials Storage, Outdoor (May not be located in the building setbacks from the Eastern boundary of PUD-286-B nor within the setback from East 47th Place South)
 - Warehouse
 - Wholesale Sales and Distribution, excluding medical marijuana uses
- INDUSTRIAL Use Category (all industrial uses must be located inside a building)
 - Low-impact Manufacturing & Industry, excluding Medical Marijuana Processing
- RECYCLING Use Category
 - Consumer Material Drop-off Station
- AGRICULTURAL Use Category
 - Horticulture Nursery, excluding Medical Marijuana Grower Operations
- OTHER Use Category
 - Drive-in or Drive-through Facility (as a component of an allowed principal use)
 - Off-Premise Outdoor Advertising Sign

Lot and Building Regulations:

Maximum Building Floor Area:	45,000 square feet
Maximum Building Height:	1-story not to exceed 20 feet
Minimum Building Setbacks:	
From easterly boundary of PUD-286-B:	25 feet
From southerly boundary PUD-286-B:	45 feet
From westerly boundary of PUD-286-B:	45 feet
From property line abutting East 47 th Place South:	50 feet

Parking:

3 parking spaces are required for every 1,000 square feet of building floor area.

Signs:

Dynamic Display Signs:

Dynamic display signage is prohibited inside PUD-286-B.

Ground Signs:

One ground sign shall be permitted along the East 47th place South frontage not to exceed 20 feet in height and 200 square feet in display area.

Wall Signs:

Wall signs shall be permitted not exceeding 1.5 square feet of display surface area per lineal foot of building wall to which attached.

Landscaping and Screening:

Landscaping and screening for the project shall conform to the requirements identified in Chapter 65 of the Tulsa Zoning Code and the supplemental regulations for specific use categories, except as modified herein. Properties may utilize Sec. 65.100-D of the Tulsa Zoning Code to allow the use of an Alternative Compliance Landscape and Screening Plan without the need to amend the standards of the PUD Development Plan.

Lighting:

Lighting for the project shall conform to the lighting requirements identified in Chapter 67 of the Tulsa Zoning Code.

General Provisions:

No zoning clearance permit shall be issued for a lot within the PUD until a detail site plan for the lot, which includes all buildings, parking and landscaping areas, has been submitted and approved as being in compliance with the approved PUD development standards.

A detail landscape plan for each lot shall be approved by the TMAPC prior to issuance of a building permit. A landscape architect registered in the State of Oklahoma shall certify to the zoning officer that all required landscaping and screening fences have been installed in accordance with the approved landscape plan for the lot, prior to issuance of an occupancy permit. The landscaping materials required under the approved plan shall be maintained and replaced as needed as a continuing condition of the granting of an occupancy permit.

No sign permits shall be issued for erection of a sign on a lot within the PUD until a detail sign plan for that has been submitted and approved as being in compliance with the approved PUD development standards.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as Employment. Employment is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	IL	Employment	Animal Boarding
East	CS/IL	Employment	Vehicle Repair and maintenance
South	OM/IL/PUD-425	Employment	Parking
West	RS-3	Neighborhood	Residential

Small Area Plans

The subject properties are not located within any adopted small area plans.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

Transportation

Major Street & Highway Plan: N/A

Comprehensive Plan Street Designation: N/A

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: The subject properties are not located within any floodplain areas.

Tree Canopy Coverage: Tree canopy in the area is 9%. Preserving the limited existing canopy should be encouraged, as well as measures to increase the canopy through landscaping. Street-lining trees in particular should be encouraged to spread the benefit of the tree canopy to the pedestrian realm.

Parks & Open Space: N/A

Zoning History

Ordinance 11824, dated June 26, 1970, established zoning for the subject property.

Ordinance 14222, dated August 14th, established IL zoning for the East half of the subject property.

Ordinance 15424, August 3, 1982, adopted PUD-286 on the subject property.

Ordinance 15858, dated November 4th, 1983, adopted PUD-286-B on the subject property.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of PUD-286-B, per staff's recommendation.

Motion by: Craddock Second by: Shivel

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Property Description

Lot Two (2), Block One (1) REGENCY PLAZA AMENDED, an addition to the City of Tulsa, Tulsa County , State of Oklahoma, according to the recorded plat thereof.

DRAFT

5. **MPD-6**

Location: Multiple properties bounded by U.S. Highway 412, East 41st Street South, South 193rd East Avenue, and South 273rd East Avenue

City Council District: 6

Applicant: Fair Oaks Ranch, LLC and Rob-Wal, LLC

Action Requested

Rezoning from AG to MPD-6

Staff Recommendation

The applicant is proposing a master planned development (MPD) covering the subject properties under application. MPDs are regulated by Chapter 25 of the Tulsa Zoning Code and are intended to accommodate developments that would be difficult or impossible to carry out under otherwise applicable zoning regulations. Provisions of the MPD must be consistent with the city's adopted plans.

If approved, MPDs adopt all zoning regulations for included properties. Unlike other development plans, MPDs do not include base zoning districts. All development standards are outlined in the MPD and are subject to the review and approval procedures of Section 70.040 of the Tulsa Zoning Code. TMAPC is authorized to approve minor amendments to development plans while major amendments require review by TMAPC and approval by the Tulsa City Council.

MPD-6 covers approximately 6,229 acres of property divided into 6 separate development areas which regulate uses, signage, minimum lot requirements, and building regulations. General regulations for open space, parking, landscaping and screening are also included.

The proposed development standards in MPD-6 as outlined below and in the applicant's text and exhibits are consistent with the land use designations and the recommendations of the Tulsa Comprehensive Plan. MPD-6 is consistent with the purpose and intent of the master planned development district and meets the following objectives of the Tulsa Zoning Code:

1. Variety in housing types and sizes to accommodate households of all ages, sizes, incomes, and lifestyle choices.
2. Compact, mixed-use development patterns where residential, commercial, employment, civic, and open space areas are located in close proximity to one another.
3. A transportation network designed to accommodate safe and efficient motorized and non-motorized travel.
4. Direct, safe and convenient non-motorized travel routes within the boundaries of the development site, as well as connections to abutting properties.
5. Buildings and other improvements that by their arrangement, massing, design, character and site design elements establish a quality, livable environment.

With consideration given to the factors listed herein, staff recommends **approval** of the application subject to the MPD-6 development standards outlined below and in the applicant's text and exhibits attached to the staff recommendation.

MPD-6 Development Standards

Property included within the boundaries of MPD-6 will be subject to the regulations of the MPD-6 development plan. Standards for MPD-6 are found in the applicant's text and exhibits which are attached to the staff recommendation. References in this section refer to the Fair Oaks Master Planned Development District document attached as an exhibit.

MPD-6 consists of 6 separate development areas:

1. Regional Centers
2. Town Centers
3. Town Center Neighborhoods
4. Village Centers
5. Neighborhood Centers
6. Business and Industrial Centers

Each development area is subject to the use restrictions and additional regulations of the Fair Oaks Master Planned Development District.

In accordance with Chapter 25 of the Tulsa Zoning Code, the following sections of the Fair Oaks Master Planned Development District provide the development standards for MPD-6.

Section 3 – Administration

Section 4 – Master Development Plan

Section 5 – Site Standards

Section 6 – Development Area Standards

Section 7 – Transportation Development Standards

MPD-6 does not waive, vary, or modify City of Tulsa requirements for public infrastructure which will be reviewed upon the submittal of infrastructure development plans. Section 7 of the Fair Oaks Master Planned Development District will guide future subdivision development by providing recommendations on the locations and types of public streets, alleys, and pedestrian infrastructure. The design elements of streets must meet or exceed the minimum design criteria, standards and/or regulations of the City of Tulsa, Oklahoma Department of Transportation (ODOT), Federal Highway Administration (FHWA), Manual on Uniform Traffic Control Devices (MUTCD), Public Right-of-Way Accessibility Guidelines (PROWAG), American Association of State Highway and Transportation Officials (AASHTO) Geometric Design and Roadside Design Guide, and Oklahoma Department of Environmental Quality (ODEQ).

In areas where the MPD is silent, provisions of the Tulsa Zoning Code will apply.

Comprehensive Plan Considerations

Land Use Plan

The subject properties contain multiple land use designations.

Regional Centers are defined by existing regional trip generators, in contrast to Local Centers. These centers should be the most connected land use pockets outside of downtown for public transit access and high-capacity arterial streets. New regional trip generators should be permitted in the area with special consideration given to transportation access and circulation. Regional trip generators include universities, malls, large medical campuses, casinos, big-box shopping centers, and very large churches.

Multiple Use areas are mostly commercial or retail uses, which include restaurants, shops, services, and smaller format employment uses. This land use designation is most common in areas of the city from earlier development patterns, with Local Centers being more commonplace in newer parts of the city. For single properties that are commercial but surrounded by Neighborhood, Multiple Use is the preferred designation.

Local Centers serve the daily needs of those in the surrounding neighborhoods. This designation implies that the center generally does not serve an area beyond the nearby neighborhoods. Typical uses include commercial or retail uses that serve the daily needs of nearby residents. In order to introduce a regional trip generator, the entire

local center designation should be amended to be Regional Center with significant input from all affected properties and nearby neighborhoods.

Employment is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Small Area Plans

The subject properties are not located within any adopted small area plans.

Development Era

The subject property is designated as a future growth area. These areas of the city have yet to be developed beyond agricultural uses, and they present opportunities to ensure the pattern of development is efficient and fiscally responsible. These areas typically do not have subdivision streets or connectivity beyond the mile-by-mile grid, have poor public service distribution (fire, police, transit, etc.) and lack utility infrastructure (water, sewer, broadband, etc.) Some areas also include exposed bedrock and/or extreme slopes. Priorities in these areas include ensuring the ability to provide adequate public services, the implementation of planned streets in the Major Street and Highway Plan, land use planning to establish frameworks for decision making, and conservation of natural areas.

Transportation

Major Street & Highway Plan: There are multiple MSHP designations throughout the subject properties. The transportation plan included with the MPD aligns with the recommendations of the MSHP. Right-of-way dedications consistent with the recommendations of the MSHP will be required to be made as development occurs on the subject property.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: A shared use trail is planned along the west side of the Creek Turnpike corridor. East 21st Street west of the Creek Turnpike is planned as an on-street, signed bicycle route.

Environmental Considerations

Flood Area: The subject properties contain several areas of designated floodplain. Floodplain areas are contained within proposed open space areas of the MPD. Any proposed development in designated floodplain areas will be required to comply with development restrictions applied to those areas by City of Tulsa ordinances.

Tree Canopy Coverage: Tree canopy in the area is... The area would benefit from additional trees, which also capture and treat runoff before it enters the river.

Parks & Open Space: There are no existing City of Tulsa park facilities in the area of the subject property. The MPD proposes a large amount of open space and community amenities which would be implemented as part of future development.

Zoning History

Ordinance 20244, dated November 20, 2001, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

Lou Reynolds, 2727 E 21st St Ste 200, Tulsa, OK 74114

Mr. Reynolds learned that a neighbor of these properties has filed bankruptcy, and he has made a claim in the bankruptcy court regarding this action. He stated they have consulted with bankruptcy attorneys and have determined that they will need relief from the bankruptcy stay and that bankruptcy before moving forward with this case. So they are asking for a continuance to January 7, 2026. That is approximately 60 days.

Speakers

All but one speaker indicated they did not have any issues with the continuance.

(-) August Wakat, 23780 East Admiral Place, Catoosa, OK. Mr. Wakat stated he was in opposition to the continuance but was unable to articulate his reason for the objection to continuing the item to a future meeting. He then started yelling and just before being removed by security finally said that the continuance was illegal.

Commission Action

Motion: To continue MPD-6 to January 7, 2026, per applicant's request.

Motion by: Turner-Addison Second by: Rosene Robinson

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

6. Z-7839

Location: West of the northwest corner of East 48th Place South and South Mingo Road

City Council District: 7

Applicant: John W. Moody

Action Requested

Rezoning from OM to CH

Staff Recommendation

The applicant is proposing to rezone the property from OM to CH to permit office/warehouse development. The property is adjacent to light industrial zoning with associated uses to the east and north. Light industrial zoning would not be appropriate at this location due to the adjacency to the single-family residential neighborhood to the west. CH zoning provides a commercial buffer between industrial uses and the neighborhood while allowing the applicant's proposed office/warehouse concept.

The lot is currently being used as a surface parking lot to serve surrounding uses. The rezoning will allow the site to be activated with a new development which will be required to conform to all current code requirements including additional landscaping and screening to provide separation from the neighborhood area to the west.

CH zoning is consistent with the recommendations of the employment land use designation which calls for office, warehouse, storage, and some smaller scale manufacturing and industrial processes.

With consideration given to the factors listed herein, staff recommends **approval** of the application.

Comprehensive Plan Considerations**Land Use Plan**

The subject property is designated as employment. **Employment** is intended to accommodate offices, warehousing and storage, manufacturing and assembly, and industrial processes. The Industrial Site Suitability map corresponds to the Employment land use designation and indicates where uses that are potentially incompatible with sensitive land uses are best suited to locate. This directs industrial uses to particular areas of the city while discouraging industrial in close proximity to Neighborhood areas.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	OM/IL/PUD-286-A	Employment	Light Industrial/Office
East	IL/PUD-425	Employment	Vacant
South	RM-2	Neighborhood	Multifamily
West	RS-3	Neighborhood	Single-Family

Small Area Plans

The subject property is not located within any adopted small area plans.

Development Era

The subject property is in an area developed during the Late Automobile Era (1950s-present), which has grown since the mainstreaming of automobile-centric lifestyles, with a high degree of separation between residential and nonresidential uses, and low levels of street connectivity. In these areas, transportation is nearly exclusively concentrated on the mile-by-mile arterial grid, and major streets are often both transportation corridors and destination corridors, which can lead to traffic congestion. Nonresidential uses are predominantly located at the

intersections of major arterial streets. Priorities in these areas include commercial revitalization, placemaking, community gathering opportunities, conservation of natural areas, a high degree of privacy, one-stop shopping, and commuting routes.

Transportation

Major Street & Highway Plan: East 48th Street South is designated as a collector street which requires a wider ultimate right-of-way dedication to ensure capacity for future expansion. Collector streets provide connections to arterials and serve as primary paths through neighborhoods.

Comprehensive Plan Street Designation: N/A

Transit: N/A

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: Sidewalks are required along all streets in the City of Tulsa.

Environmental Considerations

Flood Area: The subject property is not located in any designated flood area.

Tree Canopy Coverage: Tree canopy in the area is 9%. Preserving the limited existing canopy should be encouraged, as well as measures to increase the canopy through landscaping. Street-lining trees in particular should be encouraged to spread the benefit of the tree canopy to the pedestrian realm.

Parks & Open Space: N/A

Zoning History

Ordinance 11824, dated June 26, 1970, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of the CH zoning, per staff's recommendation.

Motion by: Bulmash Second by: Hood

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Property Description

Lot 1, Less the East 150 feet thereof, Block 1, REGENCY PLAZA ADDITION, City of Tulsa, Tulsa County, State of Oklahoma, according to the recorded Plat thereof.

Item 7 and related item 12 were presented together.

7. Z-7840 (Related to Amethyst Falls Preliminary Plat)

Location: Northwest corner of East 31st Street South and South 193rd East Avenue

City Council District: 6

Applicant: Mike Thedford, Wallace Design

Action Requested

Rezoning from AG to RS-5 and RD

Staff Recommendation

The applicant is proposing to rezone the subject property from AG to RS-5 and RD to permit single-family residential development and duplexes.

The application is consistent with several other rezoning requests that have been approved in the immediate area. There is existing RS-5 zoning to the south. The property is adjacent to two arterial streets, South 193rd East Avenue and East 31st Street South.

RS-5 permits detached houses by right with a minimum lot width of 30' and a minimum lot area of 3,300 square feet and is considered the highest density single-family residential district. RD permits detached houses and duplexes by right and requires larger lots than the proposed RS-5 zoning. RD requires a minimum lot width of 50 feet and a minimum lot area of 5,500 square feet.

Prior to permits being issued for any new construction, a subdivision plat will be required to be approved along with plans for all public infrastructure including water, sanitary sewer, stormwater, and street design. Public infrastructure will be reviewed for compliance with all City of Tulsa standards prior to approval of new subdivisions. An associated preliminary plat for the subdivision is included on the agenda as Amethyst Falls.

RS-5 and RD are consistent with anticipated development pattern in the surrounding area and the neighborhood land use designation and accommodate a desired outcome of different housing types.

With consideration given to the factors listed herein, staff recommends **approval** of the application.

Comprehensive Plan Considerations

Land Use Plan

Most of the subject property is designated as neighborhood. Neighborhoods are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

A small portion of the property located at the northwest corner of East 31st Street and South 193rd is designated as local center. The area designated as local center is contained within a designated floodplain boundary and will be utilized for stormwater infrastructure and community amenities.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
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North	AG	Neighborhood/Parks & Open Space	Agriculture/Vacant
East	AG	Employment	Vacant
South	RS-5	Neighborhood/Local Center	Residential
West	AG	Parks & Open Space	Vacant/Reservoir

Small Area Plans

The subject property is not located within any adopted small area plans.

Development Era

The subject property is in an area designated as Future Growth.

These areas of the city have yet to be developed beyond agricultural uses, and they present opportunities to ensure the pattern of development is efficient and fiscally responsible. These areas typically do not have subdivision streets or connectivity beyond the mile-by-mile grid, have poor public service distribution (fire, police, transit, etc.) and lack utility infrastructure (water, sewer, broadband, etc.) Some areas also include exposed bedrock and/or extreme slopes. Priorities in these areas include ensuring the ability to provide adequate public services, the implementation of planned streets in the Major Street and Highway Plan, land use planning to establish frameworks for decision making, and conservation of natural areas.

Transportation

Major Street & Highway Plan: South 193rd East Avenue is designated as a primary arterial which requires an ultimate right-of-way width of 120 feet. East 31st Street South is designated as a secondary arterial which will require an ultimate right-of-way width of 100 feet.

Comprehensive Plan Street Designation: N/A

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: Sidewalks

Environmental Considerations

Flood Area: The subject property contains City of Tulsa Regulatory Floodplain.

Tree Canopy Coverage: Tree canopy in the area 10%. Preserving the limited existing canopy should be encouraged, as well as measures to increase the canopy through landscaping. Street-lining trees in particular should be encouraged to spread the benefit of the tree canopy to the pedestrian realm.

Parks & Open Space: N/A

Zoning History

Ordinance 11818, dated June 26, 1970, established zoning for the subject property.

TMAPC Comments

Mr. Bulmash asked what the City of Tulsa owned property near the subject property is used for.

Staff stated that it was the City of Tulsa water reservoir.

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of the RS-5 and RD zoning, per staff's recommendation.

Motion by: Humphrey Second by: Shivel

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Property Description RD Tract

PART OF THE SOUTH HALF OF THE SOUTHEAST QUARTER (S/2 SE/4) OF SECTION THIRTEEN (13), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, LESS AND EXCEPT THE NORTHWEST DIAGONAL HALF OF THE NORTHWEST QUARTER OF THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER (NW/4 SW/4 SE/4), BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO-WIT:

BEGINNING (P.O.B.) AT THE SOUTHWEST CORNER OF THE SOUTHEAST QUARTER OF SAID SECTION; THENCE N01°18'51"W ALONG THE WEST LINE OF THE SOUTHWEST QUARTER OF SAID SECTION FOR A DISTANCE OF 659.42 FEET; THENCE N43°37'52"E FOR A DISTANCE OF 934.85 FEET TO A POINT ON THE NORTH LINE OF THE SOUTH HALF OF THE SOUTHEAST QUARTER OF SECTION 13; THENCE N88°29'29"E ALONG SAID NORTH LINE FOR A DISTANCE OF 21.00 FEET; THENCE S18°35'40"E FOR A DISTANCE OF 173.00 FEET; THENCE ALONG A CURVE TO THE LEFT WITH A RADIUS OF 25.00 FEET, A CURVE DISTANCE OF 12.12 FEET, A CHORD DISTANCE OF 12.00 FEET, WITH A CHORD BEARING OF S57°31'06"W AND AN ANGLE OF 27°46'28"; THENCE S43°37'52"W FOR A DISTANCE OF 74.73 FEET; THENCE S46°19'37"E FOR A DISTANCE OF 77.37 FEET; THENCE S01°30'31"W FOR A DISTANCE OF 67.20 FEET; THENCE S43°37'52"W FOR A DISTANCE OF 619.57 FEET; THENCE S01°18'51"E FOR A DISTANCE OF 535.59 FEET TO A POINT ON THE SOUTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION; THENCE S88°30'51"W FOR A DISTANCE OF 287.00 FEET TO THE **POINT OF BEGINNING** (P.O.B.). SAID TRACT CONTAINING 9.23 ACRES, MORE OR LESS.

BASIS OF BEARINGS

BASIS OF BEARINGS FOR THIS EXHIBIT IS THE OKLAHOMA STATE PLANE COORDINATE SYSTEM (NAD83 OKLAHOMA NORTH ZONE 3501).

Property Description RS-5 Tract

PART OF THE SOUTH HALF OF THE SOUTHEAST QUARTER (S/2 SE/4) OF SECTION THIRTEEN (13), TOWNSHIP NINETEEN (19) NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE UNITED STATES GOVERNMENT SURVEY THEREOF, LESS AND EXCEPT THE NORTHWEST DIAGONAL HALF OF THE NORTHWEST QUARTER OF THE SOUTHWEST QUARTER OF THE SOUTHEAST QUARTER (NW/4 SW/4 SE/4), BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS, TO-WIT:

COMMENCING (P.O.C.) AT THE SOUTHWEST CORNER OF THE SOUTHEAST QUARTER OF SAID SECTION; THENCE N88°30'51"E ALONG THE SOUTH LINE OF THE SOUTHEAST QUARTER OF SAID SECTION FOR A DISTANCE OF 287.00 FEET TO THE **POINT OF BEGINNING** (P.O.B.); THENCE N01°18'51"W FOR A DISTANCE OF 535.59 FEET; THENCE N43°37'52"E FOR A DISTANCE OF 619.57 FEET; THENCE N01°30'31"W FOR A DISTANCE OF 67.20 FEET THENCE N46°19'37"W FOR A DISTANCE OF 77.37 FEET; THENCE N43°37'52"E FOR A DISTANCE OF 74.73 FEET; THENCE ALONG A CURVE TO THE RIGHT WITH A RADIUS OF 25.00 FEET, A CURVE DISTANCE OF 12.12 FEET, A CHORD DISTANCE OF 12.00 FEET, WITH A CHORD BEARING OF N57°31'06"E AND AN ANGLE OF 27°46'28"; THENCE N18°35'40"W FOR A DISTANCE OF 173.00 FEET TO A POINT ON THE NORTH LINE OF THE SOUTH HALF OF THE SOUTHEAST QUARTER OF SECTION 13; THENCE N88°29'29"E ALONG SAID NORTH LINE FOR A DISTANCE OF 1960.22 FEET TO THE NORTHEAST CORNER OF THE SOUTH HALF OF THE SOUTHEAST QUARTER OF SAID SECTION; THENCE S01°18'53"E ALONG THE EAST LINE OF SAID SECTION FOR A DISTANCE OF 1319.90 FEET TO THE SOUTHEAST CORNER OF THE SOUTHEAST QUARTER OF SAID SECTION; THENCE S88°30'51"W ALONG SAID SOUTH LINE OF SAID SECTION FOR A DISTANCE OF 2354.64 FEE TO THE **POINT OF BEGINNING** (P.O.B.). SAID TRACT CONTAINING 65.78 ACRES, MORE OR LESS.

BASIS OF BEARINGS

BASIS OF BEARINGS FOR THIS EXHIBIT IS THE OKLAHOMA STATE PLANE COORDINATE SYSTEM (NAD83 OKLAHOMA NORTH ZONE 3501).

Item 8 and related item 9 were presented together.

8. CZ-571 (County) (Related to PUD-874)

Location: South of the southeast corner of East 183rd Street South and South 129th East Avenue

County Commissioner District: 1

Applicant: Westwood Professional Services, Preston Bartley

Action Requested

Rezoning from AG to RE to permit Residential Estate Lots

Staff Recommendation

The applicant is requesting a rezoning from **AG** to **RE** to permit Residential Estate Lots.

The Tulsa County Comprehensive Land Use Plan identifies the site within the Bixby fence line area and adopted the Bixby 2018 Comprehensive Plan's Figure 2-1 2030 Future Land Use map. The land use map designates the land use as "Rural Residential," which supports up to 1.5 dwelling units per acre and the City of Bixby RE Residential Estate zoning district. At a maximum of 1.0 to 1.2 dwelling units per acre, which is consistent with the Tulsa County Comprehensive Plan and Bixby 2018 Comprehensive Plan.

Staff has reviewed the request and finds that it is non-injurious to the surrounding proximate properties and consistent with the Comprehensive Plan and the anticipated future development pattern of the surrounding area, therefore;

With consideration given to the factors listed herein, staff recommend **approval** of the application.

Comprehensive Plan Considerations

Land Use Plan

The subject property is designated as: Rural Residential

The subject property is located within the *Rural Residential* land use designation of the Tulsa County Comprehensive Plan, which is consistent with the City of Bixby Comprehensive Plan as adopted by reference. This designation applies to areas characterized by large lot, detached residential development situated within the natural and rural portions of the community. Development within this category is intended to preserve the area's rural character and maintain low residential densities.

The *Rural Residential* designation also emphasizes providing adequate access to schools, parks, trails, and open spaces to enhance the overall quality of life in a rural setting. Limited neighborhood-scale commercial uses may be permitted when they are designed to support and complement the surrounding rural area.

Surrounding Properties:

<i>Location</i>	<i>Existing Zoning/Overlay</i>	<i>Existing Land Use Designation</i>	<i>Existing Use</i>
North	RS-1	Rural Residential	Residential
East	AG	Rural Residential	Residential
South	AG	Rural Residential	Vacant
West	AG	Rural Residential	West

Small Area Plans

None

Transportation

Major Street & Highway Plan: S. 129th East Ave. is classified as Secondary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15, 1980, established zoning for the subject property.

Applicant Comments

Preston Bartley, Westwood Professional Services, 110 South Hartford, Tulsa, Oklahoma 74114, stated that the proposed use is a single-family residential development with a minimum half acre lots served by septic system and public water. These homes will be high-end, quality homes in a gated community. The subdivision regulations require a PUD for a gated community with private streets. As engineers and developers, they always work closely with all the governmental authorities during the design, construction and approval process.

Mr. Bartley stated that they knew going into this project that water was a big issue and that is why they met with the City of Bixby and the City Manager who confirmed that Bixby does not have the funds to improve the water infrastructure so a lot of that will have to fall on new infrastructure being constructed by the development community.

Mr. Bartley mentioned that the street and stormwater infrastructure will be private and will not add a maintenance burden on Tulsa County.

Kevin Maevers, Director of Development Services for the Robson Companies, 901 North Forest Ridge Boulevard, Broken Arrow 74014, complimented staff and that Kendal is great to work with. During the neighborhood engagement process, the development team learned about a possible jurisdiction concerning the Muscogee Creek nation. Robson Companies representatives contacted the title company and learned that once an allotment is sold then any development becomes a fully private concern and is part of the Tulsa County jurisdiction.

Kevin Maevers reassured the Planning Commission that they are extremely sensitive to all the issues the neighbors have addressed. This is a county project in the Planning Commission's jurisdiction, reminding the planning commissioners that today's decision is limited to the zoning and PUD and the technical components of the development will be managed through the plat process. The zoning itself is consistent with the comprehensive plan. The development team will meet or exceed infrastructure development process required by the Subdivision Regulations

TMAPC Comments

Ms. Krug asked if there would be any community meetings to keep people informed.

Mr. Maevers stated that there would be public engagement meetings to keep people informed. Then when they are further along, they will have answers for these neighbors.

Mr. Hood asked if there were any community meetings yet.

Mr. Maevers stated that there had not been any meetings at this time because they do not have all the answers to their questions yet.

Mr. Hood asked about the water pressure issue.

Mr. Bartley stated that they were told that there is booster pump that is causing this issue. The summer is the worse time. The City of Bixby along with other local developers in the area that are trying to tie into this system are looking at a plan to upgrade that pump. He did not know if there had been any engineering documents that had been submitted on the plan. The City of Bixby have been working with their in-house consultants to update the water model for the existing and upcoming developments. The Bixby Council will have to approve it. Their twelve-inch line that is going to be put in will help the situation but would not take care of what the pump improvement would do.

Mr. Fugate stated that he understood the neighbors' concerns and he thought it was a mistake not to have met with the neighbors to this point. If the neighbors had been informed, this process would be a lot simpler now.

Mr. Bartley stated that it was not his intention to indicate that the water was fine in the area and that they were aware of the water pressure problems from the beginning. In their meeting with the City of Bixby, they spoke about a path forward to resolve this issue before they can start construction. That is not the reputation they want or do the builders.

Mr. Fugate asked staff what kind of prudence the Planning Commission needs to apply when developers say they are only there for the zoning when there are big issues like these.

Staff stated that the commissioners are tasked with reviewing land use in accordance with adopted comprehensive plans sent to you through staff recommendations. What gets alluded to a lot is infrastructure and technical questions. There are other standards that apply before any type of development like this can occur to ensure that those types of things are addressed. The subdivision process that has been mentioned includes engineering plans for the entity that will serve this subdivision. Staff will not approve the final plat and allow them to record these lots until those infrastructure plans are approved, those engineering requiring standards have been met, and that is what goes on in part of that plat process. That is why developers direct you back to focusing on the use is for those reasons that these other requirements are in place, and they must be adhered to before anything can be built as shown.

Mr. Fugate stated that staff's explanation had helped and that he will be for the development and believes the neighborhood utility infrastructure will be better when this project is complete.

Mr. Bulmash stated that in previous cases there are often letters that staff have spoken to the City of Bixby and that the City acknowledges that these are issues that need to be addressed and will be solved. He asked if this is something that is normally solved and is there a reason that it happens sometimes and does not happen at other times.

Staff stated that when staff receive opposition letters or the city that the community is in starts getting calls and opposition letters, the staff reaches out to the community or returns the emails.

Mr. Bulmash stated that it would be helpful to state in the staff report that the community or the opposition letters and calls were returned stating that these issues are being addressed.

Mr. Hood asked staff if the plat process considers what does it takes to get those types of things up and running.

Staff stated that project civil engineer will be required to demonstrate and prove that the system has the ability to serve these lots. In the County, when the surrounding municipality is going to provide those services, staff will not release the plat until utility and street infrastructure is installed.

Mr. Fugate asked if the Planning Commission approves the zoning today, what would be the next step.

Staff stated that the developer will bring in a preliminary plat that shows the initial layout and anticipated infrastructure improvements. The County process requires that all required engineering plans, and construction of that infrastructure must be installed prior to release of the final plat. When the final plat is approved building permits can be issued.

Ms. Krug asked staff if there is notification requirement for the preliminary plat.

Staff stated that the preliminary plat will notify the adjacent landowners. Anyone that shares a boundary or immediately across the street of this property will receive notice of a preliminary plat. Neighbors can still contact INCOG to see if progress has been made.

Speakers

(-) Randy Mashburn, 13016 East 183rd Place South, Bixby, Oklahoma 74008, stated that he would like to formally request that the Commissioners deny the request. Mr. Mashburn commented on the added strain on all the surrounding utility and street infrastructure He expressed concerns about emergency services and school overcrowding that would be added with a new home development.

(-) Judy Brown, 18326 S. 132nd East Ave., Bixby, Oklahoma 74008, stated that this land be kept as agricultural land and not make it residential. Ms. Brown commented on low water pressure and poor street maintenance.

(-) Melisa Clark, 18318 S. 130th East Ave., Bixby, Oklahoma, 74008, stated that she has lived in this area for nineteen years and was asking the TMAPC to deny this request. This is a lovely plan; it is the infrastructure.

(=) Brandy Brats, 18320 South 131st Avenue, Bixby, Oklahoma, 74008, stated that she is one house away from the proposed development already dealing with a lot of water from run-off and additional development is going to make the flooding worse. The homes around her have been there for a while and they all have done things to their homes so they can stay around for long term.

She is onboard for development; she just wants it done the right way. There is a lot of wildlife such as eagle and woodpecker nest along the creek, and she is concerned about disturbing their environment. These birds are not getting the protection that they need Federally.

(-) Julie Barlow, 18309 South 129th East Avenue, Bixby, Oklahoma 74008, stated that she has two acres next to the proposed development and commented on concerns with water supply, electrical service challenges, school resources limitations and septic system failure.

(-) Matthew Acree, 18013 South 129th East Avenue, Bixby, Oklahoma, 74008, would like Planning Commission to continue this item until Tulsa County Road improvement and water supply issues could be resolved.

Commission Action

Motion: Recommend approval of the RE zoning, per staff's recommendation.

Motion by: Fugate Second by: Craddock

Vote: 8-2-0

Ayes: Craddock, Fugate, Hood, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: Bulmash, Humphrey

Abstentions: none

Absent: Walker

Property Description

The North $\frac{1}{2}$ (N/2) of the SW $\frac{1}{4}$ (SW/4) of the NW $\frac{1}{4}$ (NW/4) of Section 4, LESS AND EXCEPT the beginning at the NW corner thereof, thence South 208.71 feet, East 208.71 feet, North 208.71 feet, West 208.71 feet to the Point of Beginning and containing one (1) acre more or less. AND The North $\frac{1}{2}$ (N/2) of the SW $\frac{1}{4}$ (SW/4) of the NW $\frac{1}{4}$ (NW/4), thence East 208.71 feet, South 208.71 feet, West 208.71 feet, North 208.71 feet, LESS AND EXCEPT in Section 4, Township 16, Range 14 East.

DRAFT

9. PUD-874 (County) (Related to CZ-571)Location: South of the southeast corner of East 183rd Street South and South 129th East AvenueCounty Commissioner District: 1Applicant: Westwood Professional Services, Preston Bartley**Action Requested**

Rezone subject properties from AG to RE with a PUD

Staff Recommendation

The applicant is requesting a rezoning from AG to RE to permit Residential Estate Lots.

The Tulsa County Comprehensive Land Use Plan identifies the site within the Bixby fence line area and adopted the Bixby 2018 Comprehensive Plan's Figure 2-1 2030 Future Land Use map. The land use map designates the land use as "Rural Residential," which supports up to 1.5 dwelling units per acre and the City of Bixby RE Residential Estate zoning district. At a maximum of 1.0 to 1.2 dwelling units per acre, which is consistent with the Tulsa County Comprehensive Plan and Bixby 2018 Comprehensive Plan.

Staff has reviewed the request and finds that it is non-injurious to the surrounding proximate properties and consistent with the Comprehensive Plan and the anticipated future development pattern of the surrounding area, therefore;

With consideration given to the factors listed herein, staff recommends approval of the application including the entire applicant submittal packet.

Comprehensive Plan Considerations**Land Use Plan**The subject property is designated as: Rural Residential

The subject property is located within the Rural Residential land use designation of the Tulsa County Comprehensive Plan, which is consistent with the City of Bixby Comprehensive Plan as adopted by reference. This designation applies to areas characterized by large-lot, detached residential development situated within the natural and rural portions of the community. Development within this category is intended to preserve the area's rural character and maintain relatively low residential densities.

The Rural Residential designation also emphasizes providing adequate access to schools, parks, trails, and open spaces to enhance the overall quality of life in a rural setting. Limited neighborhood-scale commercial uses may be permitted when they are designed to support and complement the surrounding rural area.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	RS-1	Rural Residential	Residential
East	AG	Rural Residential	Residential
South	AG	Rural Residential	Residential
West	AG	Rural Residential	Residential

Small Area Plans

None

Transportation

Major Street & Highway Plan: S. 129th East Ave. is classified as Secondary Arterial.

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15 1980, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of PUD-874, per staff's recommendation.

Motion by: Rosene Robinson Second by: Craddock

Vote: 8-2-0

Ayes: Craddock, Fugate, Hood, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: Bulmash, Humphrey

Abstentions: none

Absent: Walker

Property Description

The North ½ (N/2) of the SW ¼ (SW/4) of the NW ¼ (NW/4) of Section 4, LESS AND EXCEPT the beginning at the NW corner thereof, thence South 208.71 feet, East 208.71 feet, North 208.71 feet, West 208.71 feet to the Point of Beginning and containing one (1) acre more or less. AND The North ½ (N/2) of the SW ¼ (SW/4) of the NW ¼ (NW/4), thence East 208.71 feet, South 208.71 feet, West 208.71 feet, North 208.71 feet, LESS AND EXCEPT in Section 4, Township 16, Range 14 East.

10. CZ-572 (County)Location: Southwest corner of East 126th Street North and North 129th East AvenueCounty Commissioner District: 1Applicant: Alan Betchan, AAB Engineering**Action Requested**

Rezoning from AG to CG

Staff Recommendation

The applicant is requesting to rezone from AG to CG to allow Commercial development.

The applicant is proposing to rezone from AG to CG to permit Commercial development. The proposal lies within the commercial and transitional designation of the Tulsa County Comprehensive Plan, which adopted the land use designations in place by the City of Owasso Comprehensive Plan. This proposal is compatible with this designation.

Comprehensive Plan Considerations**Land Use Plan**The subject property is designated as: Commercial

Designation Description: The *Commercial* land use designation represents areas intended for retail trade and service-oriented activities. These areas are typically located at key nodes, such as arterial street intersections, and in some cases, at collectors and arterial intersections. Commercial districts may also occur along established commercial corridors, such as the Smith Farm area, or in highly visible locations, including segments along U.S. Highway 169, State Highway 20, and 116th Street Northwest of U.S. 169. The *Commercial* designation encompasses a range of retail and service uses, including neighborhood-scale shopping centers, single free-standing buildings, large-format retailers, restaurants, and automotive service establishments. Access is a critical factor influencing the success of commercial development. Sites with limited or unsafe access are less viable, whereas locations with convenient and well-designed access are more likely to succeed. To promote safe and efficient circulation, the development of continuous commercial strips along arterial frontages should be avoided. Instead, commercial development should incorporate access management strategies—such as shared driveways, mutual access easements, and cross-connection agreements—to minimize traffic conflicts and preserve roadway capacity.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG	Residential	Residential
East	RS-3 (Owasso)	Residential	Residential
South	AG	Transitional	Residential
West	AG	Transitional	Residential

Small Area Plans

None

Transportation

Major Street & Highway Plan: E. 126th St. N. is classified as Secondary Arterial & N. 129th East Ave. is classified as Secondary Arterial.

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15 1980, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Recommend approval of the CG zoning, per staff's recommendation.

Motion by: Craddock Second by: Whitlock

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Property Description

A TRACT OF LAND LOCATED IN THE NORTHEAST QUARTER OF THE NORTHEAST QUARTER (NE/4 NE/4) OF SECTION FIVE (5); TOWNSHIP TWENTY-ONE (21), NORTH, RANGE FOURTEEN (14) EAST OF THE INDIAN BASE AND MERIDIAN, TULSA COUNTY, STATE OF OKLAHOMA, ACCORDING TO THE U.S. GOVERNMENT SURVEY THEREOF, BEING MORE PARTICULARLY DESCRIBED AS FOLLOW, TOWIT: BEGINNING IN THE NORTHEAST CORNER OF THE NE/4 OF THE NE/4 OF SAID SECTION FIVE (5); THENCE WEST 584 FEET; THENCE SOUTH 660 FEET; THENCE EAST 584 FEET; THENCE NORTH 660 FEET TO THE POINT OF BEGINNING

11. CZ-573 (County)

Location: South of the Southeast corner of North Memorial Drive and East 143rd Street North

County Commissioner District: 1

Applicant: Brandy Salazar

Action Requested

Rezoning from AG to AG-R

Staff Recommendation

The applicant is requesting a rezoning from Agricultural (AG) to Agricultural-Residential (AG-R) to allow for residential use on the subject tract.

Parcels within the existing AG district require a minimum lot area of 2.1 acres, whereas parcels within the proposed AG-R district require a minimum lot area of 1.1 acres. Currently, no residence exists on the subject property. The site is located within the "Residential" land use designation of the City of Collinsville Comprehensive Plan, which has been adopted as part of the Tulsa County Comprehensive Plan.

Staff has reviewed the request and find that it is non-injurious to the surrounding proximate properties and consistent with the Tulsa County Comprehensive Plan and the anticipated future development pattern of the surrounding area, therefore;

With consideration given to the factors listed herein, staff recommend **approval** of the application.

Comprehensive Plan Considerations**Land Use Plan**

The subject property is designated as:

Designation Description:

The subject property is designated as Residential land use includes single-family homes, duplexes, townhouses, apartment units, and manufactured homes.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	Agricultural	Residential	Residential
East	Agricultural	Residential	Vacant
South	Agricultural	Residential	Residential
West	Agricultural	Residential	Residential

Small Area Plans

None

Transportation

Major Street & Highway Plan: N. Memorial Dr is classified as Secondary Arterial

Transit: None

Existing Bike/Ped Facilities: None

Planned Bike/Ped Facilities: None

Environmental Considerations

Flood Area: None

Parks & Open Space: None

Zoning History

Resolution 98254, dated September 15, 1980, established zoning for the subject property.

TMAPC Comments

None

Applicant Comments

The applicant was not present.

Speakers

None.

Commission Action

Motion: Recommend approval of the AG-R zoning, per staff's recommendation.

Motion by: Craddock Second by: Turner-Addison

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

Property Description

A parcel of land being a part of the South Half of the Southwest Quarter of the Northwest Quarter (S½ SW¼ NW¼) of Section Twenty-five (25), Township Twenty-two (22) North, Range Thirteen (13) East of the Indian Base and Meridian, Tulsa County, State of Oklahoma, according to the U.S. Government Survey thereof, more particularly described as follows, to-wit:

COMMENCING at the Southwest Corner of the NW¼ of Section 25, T22N, R13E; THENCE due North, on an assumed bearing; along the West line of the NW¼ a distance of 358.0 feet to the Point of Beginning; THENCE continuing due North a distance of 302.97 feet to the Northwest Corner of the S½ SW¼ NW¼; THENCE N89°58'15"E along the North line of said S½ SW¼ NW¼ a distance of 431.97 feet; THENCE S00°00'04"W a distance of 297.27 feet; THENCE S89°12'52"W a distance of 432.00 feet to the POINT OF BEGINNING.

Public Hearing – Plats

12. Amethyst Falls (Related to Z-7840)

Location: Northwest corner of East 31st Street South and South 193rd East Avenue

City Council District: 6

Applicant: Mike Thedford, Wallace Design

Action Requested

Approval of Preliminary Plat and a modification of Section 5.030 Table 5-1 of the Subdivision and Development Regulations to permit greater block lengths

Staff Recommendation

The plat consists of 336 lots, 15 blocks, ± 75 acres. Staff recommends **approval** of the preliminary subdivision plat and modification of Section 5.030 Table 5-1 of the Subdivision and Development Regulations to permit greater block lengths subject to the following conditions provided by the Technical Advisory Committee (TAC), all other requirements of the Subdivisions Regulations. Staff finds that the proposed preliminary subdivision plat complies with all applicable regulations with the exception of the requested modification. A City of Tulsa release letter is required prior to final plat approval. TAC Conditions:

Zoning

Property is zoned RS-5/RD, the intended use and proposed lot layouts meet the standards of that district.

Phasing Plan

Phases 1-5:

1. Final Plat filing October 2027
2. Final Plat filing October 2028
3. Final Plat filing October 2029
4. Final Plat filing October 2030
5. Final Plat filing October 2031

Engineering Graphics

- Submit subdivision control data sheet with the final plat.
- Remove the contours on the final plat submittal.
- Provide benchmark information if available.
- Provide the individual lot addresses on the face of the plat.
- Under the Basis of Bearings information include the coordinate system used. Provide a bearing angle preferably shown on the face of the plat. See example below.

Addressing

- Addresses will be assigned by the City of Tulsa and be provided at a later date.
- Street Names will be provided at a later date.

Article 5 of the TMAPC Subdivision and Development Regulations: Design and Improvements

Required Infrastructure and Public Improvements (5-020)

- Required improvements will include water, sewer, storm sewer, streets, ADA compliance, and private detention. Improvements must be reviewed and approved through the IDP permit.

Blocks Lengths (5-030.3)

- Applicant is requesting to extend the allowed block lengths per the attached request. Staff finds the existing development surrounding the subject property makes shorter block lengths or midblock connections undesirable and impractical due to the City owned property and infrastructure bounding the proposed subdivision.

Streets (transportation) (5-060)

- S 193rd Ave E is a Primary Arterial Street which requires a total ROW of 120' or 60' from the Section Line. This being an intersection that involves 2 Arterial Streets will require an additional 10' ROW dedication along S 193rd Ave E for right-turn lane and will also require a corner clip at the intersection as shown on Appendix C of the Major Street & Highway Plan (MSHP). Total distance of Right-turn Lane should be 388' from the intersecting section line along S 193rd Ave E.

Streets (fire) (5-060)

- No comments.

Sidewalks (5-070)

- No comments.

Protection From Flooding and Other Natural Hazards (Floodplain) (5-090)

- Floodplain mapping shown with reserves appears to comport with OD/E requirements for present floodplains.
- Modifications to floodplain to accommodate detention may require T-LOMR or LOMR process. This can be determined with the IDP review.

Stormwater Management (5-100)

- Detention in Reserve B may conflict with floodplain function based on limited information shown, but is not certain based on the preliminary plat. To be determined with plans submittal,
- Roadside ditches and/or culverts under 193rd Ave may be required to support detention shown.

Sewage Disposal (5-130)

- Lines must be sized to accommodate flows from the north and east.
- Reserve A must also be designated as a utility easement since sanitary sewer is located in it or provide separate easement for sanitary sewer.
- There is fence easement inside the utility easement along 31st St. for Blocks 1 and 3. A construction agreement may be required for the fence.

Water Supply (5-130)

- No comment.
- Hydrants shall be located to meet 2018 IFC.

Easements (5-150)

- Easement dimensions require IDP plans to review.
- No comment.
- Applicant needs to verify that proposed right-of-way dedication on S. 193rd East Avenue does not conflict with 20' R/W ESMT to PSO (Bk 6219, Pg 1057).

Streets and Stormwater

- No comment.

Deed of Dedication:

- Legal to comment after submittal of Final Plat.

Comprehensive Plan Considerations**Land Use Plan**

The subject property is designated as Neighborhood by the Tulsa Comprehensive Plan. Neighborhoods are mostly residential uses, which includes detached, missing middle, and multi-dwelling unit housing types. Churches, schools, and other low intensity uses that support residents' daily needs are often acceptable, particularly for properties abutting Multiple Use, Local Center, or Regional Center land use areas. Multi-dwelling unit housing that takes access off an arterial is considered Multiple Use, Local Center, or Regional Center. If a multi-dwelling unit housing property takes access from a lower-order street separated from the arterial, then it would be considered Neighborhood.

Surrounding Properties:

<u>Location</u>	<u>Existing Zoning/Overlay</u>	<u>Existing Land Use Designation</u>	<u>Existing Use</u>
North	AG	Parks and Open Spaces/ Neighborhood	City of Tulsa Lynn Lane Reservoir and undeveloped Agricultural Tracts
East	AG	Employment	Undeveloped
South	RS-5	Local Center/ Neighborhood	Undeveloped
West	AG	Parks and Open Space	City of Tulsa Lynn Lane Reservoir Tract

Small Area Plans

The subject properties are not located within a small area plan.

Development Era

The subject property is located in an area designated as Future Growth Area. These areas of the city have yet to be developed beyond agricultural uses, and they present opportunities to ensure the pattern of development is efficient and fiscally responsible. These areas typically do not have subdivision streets or connectivity beyond the mile-by-mile grid, have poor public service distribution (fire, police, transit, etc.) and lack utility infrastructure (water, sewer, broadband, etc.) Some areas also include exposed bedrock and/or extreme slopes. Priorities in these areas include ensuring the ability to provide adequate public services, the implementation of planned streets in the Major Street and Highway Plan, land use planning to establish frameworks for decision making, and conservation of natural areas.

Transportation

Comprehensive Plan Street Designation: N/A

Arterial Traffic per Lane:

Arterial Traffic – North (E 21st St S - 1,258 Vehicles per Lane)
 Arterial Traffic – East (S 193rd East Ave - 4,454 Vehicles per Lane)
 Arterial Traffic – South (E 31st St S - 990 Vehicles per Lane)
 Arterial Traffic - West(S Lynn Lane Rd - 2,192 Vehicles per Lane)

Environmental Considerations

Flood Area: None.

Parks & Open Space: N/A

TMAPC Comments

None

Applicant Comments

The applicant indicated their agreement with staff's recommendation.

Speakers

None.

Commission Action

Motion: Approve the preliminary subdivision plat for Amethyst Falls subject to the conditions in the staff report and a modification of Section 5.030 Table 5-1 of the Subdivision and Development Regulations to permit greater block lengths, per staff's recommendation.

Motion by: Humphrey Second by: Shivel

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

DRAFT

Other Business

None

13. Commissioner Comments

None

Adjournment

Commission Action

Motion: Adjourn

Motion by: Humphrey Second by: Bulmash

Vote: 10-0-0

Ayes: Bulmash, Craddock, Fugate, Hood, Humphrey, Krug, Rosene Robinson, Shivel, Turner-Addison, Whitlock

Nays: none

Abstentions: none

Absent: Walker

There being no further business, the meeting adjourned at 2:33 p.m.